

USE OF OTHER THAN FULL AND OPEN COMPETITION SAT

1. Identification of Agency and Contracting Activity
USS BOXER LHD-4/NAVSUP FLC SD

2. Nature and/or Description of the Action Being Approved
Two (2) Automatic Coffee/ Espresso Machines and Two (2) 9-month preventative maintenance.

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value
USS BOXER is requesting to purchase 2 coffee machines (Schaerer Coffee Art item 90075697) as direct replacements and 2 nine-month preventative maintenance services (9C Coffee Art Touch-It Espresso machine is manufactured by Schaerer USA solely for Nestle Coffee Partners Comany and is distributed solely through Nestle Coffee Partners. All It programming, receipts and marketing are proprietary to Starbucks. The Coffee Art Touch-It name is trademarked to Nestle Coffee Partners Company. Additionally, the Scha machine meets the requirements of NEXCOM Instruction 4067.9A.

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
FY25		0.00	0.00
Subtotals		0.00	0.00
			Total

4. Statutory Authority Permitting Other Than Full and Open Competition

41 U.S.C. 1903 as implemented by FAR 13.501(a) Sole Source

Additional Information Regarding Statutory Authority if Applicable

The authority to use FAR 13.106-1(b)(1)(i) for a sole-source procurement is justified in this case, due to the need for this supply, which is essential for the onboard ship's store supporting the ship's crew. The USS BOXER hosts a Starbucks coffee bar as part of the ship's store operation onboard. The "We Proudly Serve Starbucks Program" is an exclus between Starbucks and Nestle USA. Through this partnership, Nestle provide Starbucks branded products and coffee equipment, such as the Schaerer Coffee Art item 900756 exclusive partnership and the need to acquire products swiftly, procuring from a known, reliable source ensures that there are no delays or deficiencies in quality, which could equipment arriving prior to the ship's deployment schedule. The importance of supporting sailors' needs onboard the make it impractical to seek competition, thus justifying one source reasonably available under FAR 13.106-1(b)(1)(i).

Procurement Request/Solicitation/Purchase Order Number:

Control Number: NA

I. Background

- 1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilizatio
- 2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requiremen of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, the estimated cost/price, and the required c date/period of performance
USS BOXER is requesting to purchase 2 coffee machines (Schaerer Coffee Art item 90075697) as direct replacements and 2 nine-month preventative maintenance services (9C

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ONLY ONE RESPONSIBLE SOURCE		Yes
1. Restrictive Rights	No	The source has established proprietary rights, limited rights in data, patent rights, copyright processes in the item or service required.
2. Exclusive Licensing Agreements	No	The item or service is only available from the Original Equipment Manufacturer (OEM), or th authorized distributor or technical representative for the OEM.
3. Other Reasons	No	Provide details on mission impact if requirement is not solicited from only one source
B. BRAND NAME		Yes

Item required must be a brand name product, or feature of a product, particular to one manufacturer. Discuss why you are precluding consideration of a product ma another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purc cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, c modified to meet, the agency's needs

C. UNUSUAL AND COMPELLING URGENCY

No

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine process result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.1014). Describe how market research indicates other similar products and products lacking the particular feature do not meet, or cannot be modified to meet, the agency's need.

N/A

1. Date on which the requirement was first identified:

2. Required delivery date/period of performance:

04/02/2025 to 04/02/2025

3. Explanation of why delivery/commencement of services by the date mentioned above is required: Explain the impact to the mission if the date above is not met, and the circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.

N/A

4. If appropriate, include any additional pertinent information:

N/A

CERTIFICATIONS/APPROVALS:

TECHNICAL CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance

CONTRACTING OFFICER CERTIFICATION

I certify that this Exception to Fair Opportunity is accurate and complete to the best of my knowledge and belief. The Contracting Officer's signature below represents approval of this document.

Contracting Officer's Signature

LEVEL ABOVE CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief. The Level Above the Contracting Officer's signature below represents approval of this document.

Level Above the Contracting Officer

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval